

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: November 19, 2024

ORDER OF: Mary A. HERVEY, *Administrative Law Judge*.

ORDER ON RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT

On November 8, 2024, Respondent CMA CGM, SA. ("CMA") filed a motion seeking confidential treatment of its invoices, credit notes, service contracts, and information derived therefrom or incorporating the same included in its Appendix (RX2-3, RX5, RX7, RX9-10, RX17-36, RX38, RX41, RX43-44, RX46-51) and all other documents marked with the "Confidential Information" designation agreed to by the parties for discovery purposes and subject to the protective order entered on November 17, 2023. Respondent CMA CGM SA's Motion for Confidential Treatment ("Motion"). CMA requests that the designated exhibits and any documents produced by CMA and marked "Confidential Information" be treated as confidential to the extent they appear in the briefs and Appendix filed by Complainant Marine Transport Logistics, Inc. ("MTL"). CMA also requests that the undersigned only consider the public versions of the following documents: Respondent's Appendix; Respondent's Opposition Brief (Document 57); Respondent's Proposed Findings of Fact (Document 58); and Respondent's Replies to Proposed Findings of Fact (Document 59). MTL did not file a response to the motion. For the reasons set forth below, the motion is granted as to CMA's Appendix exhibit RX3, which is CMA's service contract, as well as any other service contract in the record, but otherwise denied.

As grounds in support of its request for confidential treatment, CMA states: "The terms contained in CMA's invoices, credit notes, policies, procedures, and service contracts are kept confidential by CMA, cannot be ascertained through outside sources and the business information they contain would cause significant prejudice and harm to CMA if disclosed." Motion at 1.

CMA's motion was filed after the undersigned issued an order on October 25, 2024, directing the parties to comply with certain requirements set forth in the initial order pertaining to the treatment of confidential material that had not been satisfied. Specifically, the parties had not filed the motion required by paragraph 19 of the initial order governing the use of confidential material in the proceeding. Additionally, MTL had failed to comply with paragraphs 20 and 21 of the initial order by submitting a fully redacted document in the

confidential version of Volume I of its Appendix.¹ Because the requirements for confidential treatment of material in the proceeding had not been satisfied, the parties were ordered to cure these deficiencies no later than November 8, 2024. Order on Confidential Treatment at 3.

The initial order dated September 12, 2022, provided detailed instructions about the use, and filing of confidential material. It states in pertinent part:

Confidential Material

18. *Stipulation* - The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.

19. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

20. *Filing* – Parties should file two versions of confidential filings marked as the “confidential version” and the “public version.” The confidential version may be provided to the Presiding Officer by email but should not be filed with the Office of the Secretary by email pursuant to Commission Rule 5. 46 C.F.R. § 502.5.

21. *Marking confidential material* – In the confidential version, confidential information must be conspicuously and clearly marked on each page, for example by highlighting or braces. The public version must indicate on the cover page and on each affected page “Public version – confidential materials excluded.” The public version must clearly indicate any omissions, for example with blackout or braces, and its pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”

Initial Order at 4-5.

¹ By email sent to Judges@FMC.gov by the parties on November 8, 2024, MTL stated that it could not submit an unredacted copy of its Appendix because only redacted copies had been produced by CMA in discovery, and suggested that CMA may be able to submit unredacted documents in response to the order. CMA responded that it objected to providing unredacted documents on the grounds of confidentiality.

Although a protective order applicable to discovery was entered November 17, 2023, pursuant to the consent motion and confidentiality stipulation filed by the parties, until now neither party had filed a motion that addressed the use of confidential material in the proceeding. Order Entering Protective Order.

CMA's motion does not show good cause demonstrating that "each item" for which confidential treatment is sought is a "trade secret or other confidential research, development, or commercial information" in accordance with the initial order. Rather than explaining why each item is entitled to confidential treatment, CMA makes a blanket assertion that categories of documents and all documents that had been marked "Confidential Information" for use in discovery are entitled to confidential treatment on the ground that they are "kept confidential by CMA, cannot be ascertained through outside sources and the business information they contain would cause significant prejudice and harm to CMA if disclosed." This type of generalized boilerplate objection is insufficient to sustain a claim of privilege, which must be done in a fashion that enables other parties to assess the claim without revealing the privileged information itself. *See Briggs v. Yi*, 2023 WL 2914935, at *6 (D. Alaska 2023.)

Additionally, many of the documents for which CMA now seeks confidential treatment were not redacted in the public version of its Appendix by blacking out confidential portions in accordance with paragraph 21 of the initial order, including RX5, RX 7, RX 9-10, RX17-19, RX22-24, RX27-33, RX35-36, RX38, RX41, RX43, and RX46-50. As such, CMA now seeks to expand the number of documents subject to confidential treatment beyond those originally designated. The undersigned finds that by disclosing these documents unredacted in the public version of its Appendix, CMA waived its claim for confidential treatment. *See Bowne Of New York City, Inc. v. AmBase Corp.*, 150 F.R.D. 465, 480 (S.D.N.Y. 1993) (citations omitted) (held that attorney client privilege and work product privilege were waived by disclosure despite the intent to maintain confidentiality).

With the exception of CMA's service contract, which is undoubtedly entitled to confidentiality pursuant to 46 U.S.C. § 40502(b) and 46 C.F.R. § 530.4, CMA's blanket assertion of confidentiality fails to meet its burden to show that each item for which it seeks confidential treatment is entitled to confidentiality in accordance with paragraph 19 of the initial order dated September 12, 2022. Moreover, to the extent that CMA's public version of its Appendix was not redacted in accordance with paragraph 21 of the initial order, CMA waived its confidentiality claim by disclosing the documents in the public version. CMA also failed to show good cause in support of its informal objection to submitting unredacted copies of the redacted documents that it produced to MTL in discovery.

For the foregoing reasons, the Motion is GRANTED with respect to RX3, CMA's service contract, and any other service contract in the record, but otherwise DENIED. Additionally, MTL is relieved of its obligation to submit an unredacted copy of its Appendix on the ground of impossibility because it does not possess unredacted copies of the confidential documents produced by CMA in discovery.

Mary A. Hervey -S

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Mary Apostolakos Hervey
Administrative Law Judge